

Grounds of Complaint

Case Number: 6012467/2024

Claimant: Stanley Wong

Respondent: Phoenix Group Management Services Limited

1. Background

1.1 I was employed by the Respondent as an **IPV Analyst** on a **fixed-term contract** that commenced on **13th November 2023**. My employment was subject to a six-month probationary period.

1.2 Prior to my interview on 29th August 2023, I disclosed that I am on the autism spectrum via email and explicitly requested reasonable adjustments, including:

- Asking **closed** rather than open-ended questions.
- Avoiding **multi-layered or abstract** questions.
- Allowing **additional processing time** for responses.
- Providing **clear and explicit** expectations and instructions.

1.3 These requests were consistent with established guidance from **Bath University** and the **Autism Employment Fact Sheet**, which acknowledge that autistic individuals experience **varying communication challenges**.

1.4 The Respondent **acknowledged and implemented these adjustments during my interview**, confirming their awareness of my condition. However, these **adjustments were inconsistently applied throughout my employment**, particularly during **performance assessments, the probation review, and my dismissal meeting**.

2. Direct Disability Discrimination (Section 13 EqA 2010)

2.1 Under **Section 13 of the Equality Act 2010**, direct discrimination occurs when an employer treats a disabled person **less favorably than a non-disabled person because of their disability**.

2.2 The probation meeting notes from **10th May 2024** confirm that **communication difficulties were repeatedly cited**, including statements such as "communication is very difficult," "you need to take more responsibility for communication," and "we have been talking about communication for 20 minutes, so I guess that might be a problem." These communication challenges are an inherent characteristic of autism, meaning that my dismissal was directly linked to my disability.

2.3 The employer did not dismiss me due to a **specific work-related failure**, but rather because my **communication style, processing time, and social interaction—traits of autism—did not align with their expectations**. The probation meeting notes confirm that communication was the dominant issue in my dismissal, reinforcing that my autism, rather than my actual work performance, was the primary reason for termination. This constitutes **direct discrimination under Section 13 EqA 2010**, as I was treated less favorably due to my autism., but rather because my **communication style, processing time, and social interaction—traits of**

autism—did not align with their expectations. This constitutes **direct discrimination under Section 13 EqA 2010**, as I was treated less favorably due to my autism.

2.4 Unlike other forms of discrimination, **direct discrimination cannot be justified under the law.** Since my dismissal was explicitly based on my **autism-related communication traits**, it is unlawful.

3. Discrimination Arising from Disability (Section 15 EqA 2010) – Alternative Claim

3.1 If the Tribunal does not find direct discrimination, I alternatively claim **discrimination arising from disability under Section 15 EqA 2010**. This applies when an employer treats a disabled person unfavorably **because of something arising in consequence of their disability**, unless it can be objectively justified.

3.2 The Respondent cited **communication issues and lack of initiative** as justification for my dismissal. These issues were a direct **consequence of my autism**, meaning that the decision was **discrimination arising from disability**.

3.3 Under **Section 136 EqA 2010**, the burden of proof shifts to the employer to **prove that my dismissal was not connected to my autism**. Given that communication issues were the primary reason for dismissal, the employer must justify why reasonable adjustments were not made before terminating my contract.

4. Failure to Make Reasonable Adjustments (Sections 20 & 21 EqA 2010)

4.1 Under **Section 20 of the Equality Act 2010**, the Respondent had a **legal duty** to make reasonable adjustments once aware of my disability. The Respondent's own **Grounds of Resistance (GoR) implicitly acknowledges** my disability by stating that adjustments were considered.

4.2 Despite this duty, the Respondent **failed to consistently apply the reasonable adjustments necessary to accommodate my autism**, including:

- **Not providing clear and structured communication** despite my known difficulty with processing ambiguous instructions.
- **Expecting participation in group chats**, which was contrary to the adjustments I had requested for clear, direct communication.
- **Not allowing sufficient processing time** during performance meetings, which led to misunderstandings that were unfairly perceived as performance deficiencies.

4.3 Under **Section 21 EqA 2010**, failure to comply with the duty to make adjustments constitutes **unlawful discrimination**.

4.4 Employers have a **proactive legal duty** to identify, explore, and implement reasonable adjustments once aware of a disability.

5. Procedural Unfairness and Unfair Dismissal (Employment Rights Act 1996)

5.1 My dismissal was **procedurally unfair** because:

- My dismissal was **abrupt and premature**, denying me any opportunity to explore internal redeployment within Phoenix Group, which suggests that my dismissal was premeditated.

- No **capability review** or formal assessment of my disability's impact on performance was conducted.
- I was not given a **genuine opportunity** to improve with reasonable adjustments in place.
- No adjustments were made during my dismissal meeting.
- There was **no attempt to find alternative employment** for me within the organization.
- I was **not permitted to serve my notice period**, despite this being standard practice.
- The appeal process was artificial, predetermined, and lacked due process. It even denied the impact of my autism on my performance while the evidence was very clear. My concerns were not genuinely considered, and the outcome was decided in advance.

5.2 Although I do not have two years of service required for an **ordinary unfair dismissal claim**, the fact that my dismissal was discriminatory means it was automatically unfair.

5.3 Proportionality Test for Dismissal

- The Respondent must demonstrate that **dismissal was proportionate and necessary** to achieve a legitimate aim.

6. Claims and Remedies Sought

Given the **direct discrimination, discrimination arising from disability, failure to make reasonable adjustments, procedural unfairness, and unfair dismissal**, I seek the following remedies:

- **Re-engagement in a suitable role within the Respondent's organization**, with appropriate reasonable adjustments implemented.
- **Compensation for loss of earnings**, including the premature termination of my fixed-term contract.
- **Compensation for injury to feelings** within the **middle to upper Vento band**, reflecting the emotional distress and professional harm suffered.
- **Compensation for future loss of earnings**, as my dismissal has significantly impacted my ability to secure alternative employment.
- **Any other losses associated with the termination of my employment.**

7. Conclusion

The Respondent's actions amount to:

- **Direct disability discrimination** (Section 13 EqA 2010).
- **Discrimination arising from disability** (Section 15 EqA 2010).
- **Failure to make reasonable adjustments** (Sections 20 & 21 EqA 2010).
- **Procedural unfairness and unfair dismissal** (Employment Rights Act 1996).
- **Burden of proof shifting to the Respondent** (Section 136 EqA).

Additionally, the Respondent holds access to all internal communications, meeting notes, and HR discussions related to my dismissal, while I have been excluded from these discussions. This creates an information asymmetry that places me at a disadvantage in proving internal decision-making. I request extensive document disclosure to ensure transparency regarding the handling of my case.

I reserve the right to amend and expand my claim further following document disclosure.